10 — Commercial partnership agreement

Français (version de référence) : ../fr/10-contrat-partenariat.md

> **TEMPLATE — TO VALIDATE** (lawyer and tax adviser: commissions, withholding, partner status). See the partner model in `marketing/en/09-partner-model.md`.

Header	
Jurisdiction	DRC; OHADA Uniform Act on general commercial law (commercial intermediaries)
Assumptions	H-01, H-10, H-11, H-18
Sources	S14 — see 00-legal-research.md § 7
Clauses to validate	V-02, V-03, V-11; classification (referrer, commercial agent, reseller)
Version	[NUMBER] of [DATE]

Between

[PUBLISHER COMPANY NAME] (the "Publisher") and **[PARTNER NAME]**, [individual / company], [RCCM or identification number], [ADDRESS] (the "Partner").

1. Type of partnership (tick)

- ☐ **Referrer**: introduces businesses to the Publisher; signs nothing on the Publisher's behalf.
- ☐ **Integrator / trainer**: installs Nhill, imports data, trains users, invoices its own services to the customer.
- ☐ **Support organisation** (association, incubator, federation): makes Nhill known to its members.

2. Independence

The Partner acts as an independent professional. It is neither an employee nor an agent of the Publisher and cannot bind it. It bears its own costs unless agreed in writing. **[TO VALIDATE: V-11 — classification under the Uniform Act (commercial agent, broker).]**

3. Referred customer

A business counts as referred by the Partner if the Partner records it in the [partner form / shared tracking sheet] **before** any direct contact with the Publisher, and it then takes a paid subscription within [90] days. If two partners report the same business, the first record prevails.

4. Remuneration

Item	Value
Commission	[N] % of amounts **actually collected** excluding taxes, over the first [12] months of the referred customer's subscription
Customer discount (partner code)	[N] % for [N] months, if any

Item	Value
Payment	monthly, before the [10th] of the month after collection, in [USD / CDF] by [transfer / Mobile Money]
Statement	monthly statement of referred customers and amounts collected

No commission on refunded or unpaid amounts. Any tax withholding is applied as required by law. **[TO VALIDATE: V-03, V-11 — taxation of the commission.]**

5. Partner's commitments

Present Nhill fairly, **without promising what the software does not do** (in particular: Nhill is not invoicing software certified by the DGI; no guaranteed figures); use only the materials provided or approved by the Publisher; respect prospects' consent (no addition to a mailing list without agreement); never ask a customer for a password.

6. Publisher's commitments

Provide presentation materials, a demo account, an initial [2]-hour training, an accurate monthly statement, and answer the Partner's questions within [2] business days.

7. Trademark

The Partner may mention "Nhill partner" during the contract, according to the guidelines provided. It registers no domain name or social-media account containing "Nhill".

8. Personal data

Each party is responsible for the data it collects. Prospect data passed to the Publisher is passed with the person's agreement (template 16).

9. Term and end

Term [12] months, renewable by express agreement. Either party may terminate with [30] days' notice; for serious breach, without notice after a formal notice left unremedied for [15] days. Commissions earned before the end remain due.

10. Non-solicitation

[Option] During the contract and for [6] months after, neither party directly solicits the other's employees. **[TO VALIDATE: V-11.]**

11. Governing law

Law of the DRC and OHADA Uniform Acts; amicable settlement, then [Kinshasa/Gombe commercial court] **[TO VALIDATE: V-02]**.

Made in [CITY], on [DATE].

For the Publisher	For the Partner
[NAME, TITLE]	[NAME]